ONCEMORE MUTYORAMWENDO
and
THE STATE

HIGH COURT OF ZIMBABWE
ZHOU AND CHIKOWERO JJ
HARARE; 9 January 2024

Criminal Appeal

Appellant in person
K. H Kunaka, for the first respondent

CHIKOWERO J:

[1] This is an appeal against the sentence imposed on the appellant by the Regional Court sitting at Murewa. The appellant was convicted following a trial on one count of rape as defined in s 65 of the Criminal Law (Codification and Reform Act [*Chapter 9:23*] (the Criminal Law Code.

[2] The appellant is a 44 year old school teacher based in Mudzi. Despite his protestations, he was convicted of raping his 11 year old niece. The offence was committed on 13 September 2018 in the appellant's dining room at Mudzi where she was sleeping alone, as the appellant's wife and children were in Harare on a visit.

[3] In ravishing the complainant, the appellant had, during the night, entered the dining room. The only persons at the residence were the appellant and his victim. The complainant awoke at night only to discover that the appellant had mounted her and had inserted his penis into her vagina. He had completely undressed her. Her vagina was painful. She bled. This crime was committed over a weekend.

[4] The following day the appellant took the complainant to a certain school where he apparently taught. There, he instructed the complainant to sleep in the spare bedroom while he put up in the main bedroom. He told the complainant to leave the spare bedroom door open. Suspecting that the appellant intended to sexually ravage her again the

complainant made good her escape under cover of darkness. She made a complaint of the rape to EM, a female adult who resided near the school. This led to the arrest of the appellant and his prosecution. The appellant was sentenced to 20 years imprisonment. The Regional Court did not suspend any portion of the sentence.

[5] A Judge of the Supreme Court granted the applicant leave to appeal against the sentence out of time as well as a certificate to prosecute the appeal in person.

[6] The applicant's appeal came before us on 9 January 2024. The appeal was conceded to the extent that 4 years of the sentence passed by the Regional Court be suspended for 5 years on the usual conditions of good behavior. We took the view that the concession was proper. We allowed the appeal to the extent that we suspended 4 years of the sentence of 20 years imprisonment imposed by the *Court a quo* to leave an effective sentence of 16 years imprisonment.

[7] We have been requested to furnish reasons for our decision. These are they.

[8] The appellant presented six grounds of appeal against the sentence. However, all the grounds raise one issue, namely, that the sentence is manifestly harsh and excessive as to induce a sense of shock.

[9] The mitigating factors considered by the lower Court are that the appellant was then 44 years old, a first offender, married with two children and a sole breadwinner. In aggravation, the lower Court took into account the following. As an 11 year old girl the victim was particularly vulnerable. She was not only a female but was very young. She was in Grade 4. The appellant is uncle to the victim, in the sense that he is her father's sibling. He was living with and attending to her welfare. She regarded him as her father. The rape was a gross betrayal of trust on the part of the appellant. It also is immoral by reason of it being incestuous. There is the huge age difference of 33 years between the appellant and his victim. The crime traumatized the victim. Further, it exposed her to sexually transmitted diseases including the deadly AIDS.

[10] Having balanced the aggravation against the mitigation the lower Court found that the latter were outweighed by the former with the result that there was no justification for suspending any portion of the 20 year imprisonment sentence that it settled for.

[11] The lower Court sentenced the appellant on 11 April 2019. At that time s 65 of the Criminal Law Code provided for a penalty of imprisonment for life or any definite period of imprisonment for offenders convicted of this crime. The Criminal Procedure

(Sentencing Guidelines) Regulations 2023 had not yet been promulgated. While cognisant of this fact Ms Kunaka drew our attention to the statutory minimum mandatory penalty of 15 years imprisonment for rape committed in aggravating circumstances, applicable at the time of the hearing of the appeal, as a guide to what an appropriate sentence would be, hence her submission that we interfere with the sentence to the extent already indicated in this judgment. Fully aware that the 20 year presumptive sentence set out in the sentencing guidelines was not the law applicable when the lower Court was assessing an appropriate sentence, we think it also gives an indication of the kind of sentence suited to the circumstances of the matter.

[12] The appellant's reliance on the old cases of *S* v *Ndlovu* 2012 (1) ZLR 393 (H) and *S* v *Ndoziva* HH 43/11 which expressed the view that 5 to 10 years imprisonment was an appropriate sentencing range for a single count of rape was misguided. Sentences for rape had, by 2019, significantly risen since 2011 and 2012. The appellant did not refer us to any comparable cases decided in 2019 in which a Court in this jurisdiction imposed a sentence of 10 years imprisonment of which 3 years were suspended on the usual conditions of good behavior. Further, that both the appellant and his victim tested negative to sexually transmitted infections and AIDS is not the issue. Rather, as correctly pointed out by the lower Court, what is aggravatory is that he exposed the complainant to the risk of contracting sexually transmitted diseases including AIDS by dint of him being a sexually active person.

[13] What persuades us is the concession made by the respondent. The appellant is a first offender. That weighs in his favour. The sentence should not have put him in the same bracket with a repeat or multiple offender. To the extent that no portion of the sentence was suspended despite the appellant's status as a first offender, the sentence is indeed shocking.

ORDER

1. The appeal is allowed.
2. The sentence imposed by the Magistrates Court is set aside and is substituted with the following:

> "20 years imprisonment of which 4 years are suspended for 5 years on condition the accused does not within that period commit any offence of a sexual nature on the person of another and for which upon conviction the accused is sentenced to a term of imprisonment without the option of either a fine or community service."

Effective Sentence: 16 years imprisonment.

CHIKOWERO J:.....

ZHOU J: AGREES**……...**

The National Prosecuting Authority, Respondent's Legal Practitioners